

## 25PR01187 Matter of Norman E. Richtick, B Joann Richtik Trust

County: sonoma

Division: Probate

Hearing date: 2026-08-21

Motion: Verified Petition to Remove Trustees and Appoint a Successor Trustee; for a Trust Accounting; for Payment of Attorneys' Fees; Removal of Personal Representatives

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Verified Petition to Remove Trustees and Appoint a Successor Trustee; for a Trust Accounting; for Payment of Attorneys' Fees; Removal of Personal Representatives

Tentative Ruling: This matter is CONTINUED to November 13, 2026 at 9:30 a.m. in Department 63 to be heard along with the associated accounting petition, filed by the trustee on July 20, 2026. Whether there were breaches of the trustee's duties or other malfeasance such that the trustee should be removed and surcharged depends on whether the accounting is true and accurate and whether (and to what extent) it reveals malfeasance. Therefore, this matter will trail the outcome of the trustee's accounting petition.

The petitioner's "Verified Response to Respondents' Verified Objections and Responses to Petition" filed August 14, 2026 is not a recognized pleading. See California Probate Code §1000(a) [Except to the extent that this code provides applicable rules, the rules of practice applicable to civil actions constitute the rules of practice in, proceedings under this code.] The Court STRIKES the August 14, 2026 response pursuant to California Code of Civil Procedure §436(b).

As this is a contested matter, the parties are ordered to meet and confer in compliance with local rule 6.2.F.2 and file statements of issues in compliance with local rule 6.2.F.3 at least seven (7) court days in advance of the continued hearing.